CONTRACT BETWEEN THE EMERSON CHARTER SCHOOL AND PORTLAND PUBLIC SCHOOL DISTRICT NO 1J

SECTION 1: AUTHORITY

Pursuant to the "Student Success Act", codified at 2019 Oregon Laws Chapter 122 and as amended from time to time (the "Act"), Multnomah County School District No. 1J (the "District") is authorized to distribute funding from District's allocation of the Student Investment Account (SIA) as described in Section 10, subsection 4, of the Act. The District shall serve as the fiscal agent for The Emerson School ("Grantee") for Student Investment Account grant funds only. The Grantee will serve as their own fiscal agent for all other funding streams within the Oregon Department of Education's (the "Department" or "ODE") Integrated Plan.

SECTION 2: PURPOSE

The purpose of the programs under which this Grant is issued is to provide Grantee funding to meet students' mental or behavioral health needs and increase academic achievement for students, including reducing academic disparities for students that are economically disadvantaged; have historically experienced academic disparities; and any others as determined by the State Board of Education.

SECTION 3: EFFECTIVE DATE AND DURATION

When all Parties have executed this Grant, and all necessary approvals have been obtained, this Grant shall be effective on the same date (July 1, 2025) as the District's SIA agreement with ODE and, unless terminated earlier in accordance with its terms, shall expire on the same date (June 30, 2027) as the District's agreement with ODE.

SECTION 4: GRANT MANAGERS

4.1 District's Grant Manager is:

Kristin Johnson, Financial Operations Manager, Grant Accounting
501 N. Dixon St.
Portland, OR 97227
503-916-3161
kjohnson5@pps.net

4.2 Grantee's Grant Manager is:

Amanda McAdoo, School Administrator
1800 SW 1st Avenue Suite #1
Portland, OR 97201
503-525-6124
amanda@emersonschool.org

4.3 A Party may designate a new Grant Manger by written notice to the other Party.

SECTION 5: PLAN AND BUDGET

5.1 Grantee shall perform the activities as submitted in the Integrated Programs application including the Integrated Programs Budget for 2025-27, along with their Outcomes and Strategies.

SECTION 6: GRANT FUNDS AND EXCHANGE OF SERVICES

6.1 **Grantee Allocation.** In accordance with the terms and conditions of this Grant, the District shall provide Grantee 100% of the SIA Allocation amount generated by the ADMw attributed to the Grantee and published by ODE in the Extended ADMw reports for the most recent *closed school year* for the purposes described in Section 2; and District shall pay the Grantee from solely monies available through its District SIA Grant Allocation (the "Funding Source"). Funds received by the Grantee under this Agreement (the "Grant Funds") may be used only for eligible expenditures authorized by this Grant and incurred during the Performance Period. *(Note: "closed school year" refers to 2023-24 for the 2025-26 SIA allocations and 2024-25 for the 2026-27 SIA allocations.)*

6.1.1 **Administrative Rate**. Grantee may not use any of the Grantee's allocation for administrative costs.

6.1.2 The Grantee must establish a separate account for all funds received as part of the Grant.

SECTION 7: DISBURSEMENT GENERALLY

7.1 Disbursement.

7.1.1 District shall disburse Grant Funds by Electronic Funds Transfer within ten (10) business days of District receiving the SIA allocation from ODE.

7.1.2 If District determines that any completed Project activities or documentation are not acceptable in the District's reasonable discretion and that any deficiencies are the responsibility of Grantee, District shall prepare a detailed written description of the deficiencies and will deliver such notice to Grantee, in addition to any other remedies for Default by Grantee under this Agreement. At District's discretion, Grantee shall correct any deficiencies at no cost to District within 30 business days or as otherwise required by District.

7.1.3 All expenses must adhere strictly to ODE guidance and rules adopted by the State Board of Education regarding the allowable uses of SIA grant funds.

7.2 **Conditions Precedent to Disbursement.** District's obligation to disburse Grant Funds to Grantee under this Grant is subject to satisfaction of each of the following conditions precedent:

7.2.1 District has received sufficient funding to allow District, in the exercise of its reasonable administrative discretion, to make the disbursement.

7.2.2 No default as described in Section 12 has occurred.

7.2.3 Grantee's representations and warranties set forth in Section 8 are true and correct on the date of disbursement(s) with the same effect as though made on the date of disbursement.

7.3 **Recovery of Grant Funds.** Any Grant Funds disbursed to Grantee under this Grant that are expended in violation or contravention of one or more of the provisions of this Grant ("Misexpended Funds") or that remain unexpended on the earlier of termination or expiration of this Grant ("Unexpended Funds") must be returned to District. Grantee shall return all Misexpended Funds and Unexpended Funds to District promptly after District's written demand, but in any event no later than 30 business days after the District's written demand.

7.4 **Duplicate Payment.** Grantee shall not be compensated for, or receive any other form of duplicate, overlapping or multiple payments for the same costs financed by or costs and expenses paid for by Grant Funds from any agency of the State of Oregon or the United States of America or any other party, organization or individual.

SECTION 8: REPRESENTATIONS AND WARRANTIES

8.1 **Organization/Authority.** Grantee represents and warrants to District that:

8.1.1 Grantee is an Oregon Nonprofit Corporation duly organized and validly existing under the laws of the State of Oregon, is eligible to receive the Grant Funds and has full power, authority and legal right to make this Grant and to incur and perform its obligations hereunder;

8.1.2 The making and performance by Grantee of this Grant (a) have been duly authorized by Grantee, (b) do not and will not violate any provision of any applicable law, rule, regulation, or order of any court, regulatory commission, board, or other administrative agency or any provision of Grantee's Articles of Incorporation or Bylaws; and (c) do not and will not result in the breach of, or constitute a default or require any consent under any other agreement or instrument to which Grantee is a party or by which Grantee or any of its properties may be bound or affected. No authorization, consent, license, approval of, or filing or registration with or notification to any governmental body or regulatory or supervisory authority is required for the execution, delivery or performance by Grantee of this Grant, other than those that have already been obtained;

8.1.3 This Grant has been duly executed and delivered by Grantee and constitutes a legal, valid and binding obligation of Grantee enforceable in accordance with its terms;

8.1.4 Grantee is, and throughout the Performance Period will be, in compliance with its charter agreement and all Oregon laws applicable to charter schools operating in the State of Oregon including, without limitation, ORS 338.035; and

8.1.5 The representations and warranties set forth in this section are in addition to, and not in

lieu of, any other representations or warranties provided by Grantee.

SECTION 9: GOVERNING LAW, CONSENT TO JURISDICTION

This Grant shall be governed by and construed in accordance with the laws of the State of Oregon without regard to principles of conflicts of law. Any claim, action, suit or proceeding (collectively "Claim") between District or any other agency or department of the State of Oregon, or both, and Grantee that arises from or relates to this Grant shall be brought and conducted solely and exclusively within the Circuit Court of Multnomah County for the State of Oregon; provided, however, if a Claim must be brought in a federal forum, then it shall be brought and conducted solely and exclusively within the United States District Court for the District of Oregon. In no event shall this Section be construed as a waiver by the State of Oregon of any form of defense or immunity, whether sovereign immunity, governmental immunity, immunity based on the eleventh amendment to the Constitution of the United States or otherwise, to or from any Claim or from the jurisdiction of any court. Grantee, BY EXECUTION OF THIS GRANT, HEREBY CONSENTS TO THE IN PERSONAM JURISDICTION OF SAID COURTS.

SECTION 10: ACCOUNTABILITY AND REPORTING

10.1 Grantee will identify longitudinal performance growth targets (the "Targets") in accordance with the guidance published by the Department. In addition to those Targets required by the Act, Grantee may identify local Targets.

10.2 Grantee will follow the reporting timeline as indicated by the Department.

SECTION 11: INDEMNIFICATION

11.1 Grantee shall defend, save, hold harmless, and indemnify the District and its officers, directors, employees and agents from and against all claims, suits, actions, losses, damages, liabilities, costs, and expenses of any nature whatsoever, including attorney's fees, resulting from, arising out of, or relating to the activities of Grantee or its officers, directors, employees, subcontractors, or agents under this Grant (each of the foregoing individually or collectively a "Claim" for purposes of this section).

SECTION 12: DEFAULT

12.1 **Grantee.** Grantee will be in default under this Grant upon the occurrence of any of the following events:

12.1.1 Grantee fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant or required by the State of Oregon, including but not limited to its financial accounting or reporting requirements under this Grant.

12.1.2 Grantee uses or expends Grant Funds for any purpose other than that defined in this Grant.

12.2 **District.** District will be in default under this Grant if District fails to perform, observe or discharge any of its covenants, agreements, or obligations under this Grant.

SECTION 13: REMEDIES

13.1 **District Remedies.** In the event Grantee is in default under Section 12, District may, at its option, pursue any or all of the remedies available to it under this Grant and at law or in equity, including, but not limited to (a) termination of this Grant under Section 16, (b) reducing or withholding payment for Project activities that Grantee has failed to complete according to the Act, (c) requiring Grantee to complete, at Grantee's expense, additional activities necessary to satisfy its obligations or meet performance standards under this Grant, (d) withholding payment of State School Funds, (e) repayment of unused or inappropriately used Grant funds, including exercise of its right of recovery of overpayments under Section 14 of this Grant or setoff, or both, and/or (g) pursue termination of the charter contract as per ORS 338.105. These remedies are cumulative to the extent the remedies are not inconsistent, and District may pursue any remedy or remedies singly, collectively, successively or in any order whatsoever.

13.2 **Grantee Remedies.** In the event District is in default under Section 12 and whether or not Grantee elects to exercise its right to terminate this Grant under Section 16.3.2, Grantee's remedy may be exercised through any dispute provisions in this agreement or in the current executed charter contract.

SECTION 14: RECOVERY OF OVERPAYMENTS

If payments to Grantee under this Grant, or any other agreement between District and Grantee,

exceed the amount to which Grantee is entitled, District may, after notifying Grantee in writing, withhold from payments due Grantee under this Grant or other agreement between District and Grantee, such amounts, over such periods of times, as are necessary to recover the amount of the overpayment.

SECTION 15: LIMITATION OF LIABILITY

EXCEPT FOR LIABILITY ARISING UNDER OR RELATED TO SECTION 11, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR INCIDENTAL, CONSEQUENTIAL, OR OTHER INDIRECT DAMAGES ARISING OUT OF OR RELATED TO THIS GRANT, REGARDLESS OF WHETHER THE LIABILITY CLAIM IS BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, PRODUCT LIABILITY OR OTHERWISE. NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR ANY DAMAGES OF ANY SORT ARISING SOLELY FROM THE TERMINATION OF THIS GRANT IN ACCORDANCE WITH ITS TERMS.

SECTION 16: TERMINATION

16.1 **Mutual.** This Grant may be terminated at any time by mutual written consent of the Parties.

16.2 **By District.** District may terminate this Grant as follows:

16.2.1 Upon 30 days advance written notice to Grantee;

16.2.2 Immediately upon written notice to Grantee, if District fails to receive funding, or allocations, or other expenditure authority at levels sufficient in District's reasonable administrative discretion, to perform its obligations under this Grant;

16.2.3 Immediately upon written notice to Grantee, if federal or state laws, rules, regulations or guidelines are modified or interpreted in such a way that the District's performance under this Grant is prohibited or District is prohibited from paying for such performance from the planned funding source;

16.2.4 Immediately upon written notice to Grantee, if Grantee is in default under this Grant and such default remains uncured 30 days after written notice thereof to Grantee; or

16.2.5 As otherwise expressly provided in this Grant.

16.3 **By Grantee.** Grantee may terminate this Grant as follows:

16.3.1 Upon 30 days advance written notice to District;

16.3.2 Immediately upon written notice to District, if District is in default under this Grant and such default remains uncured 30 days after written notice thereof to District; or

16.3.3 As otherwise expressly provided in this Grant.

16.4 **Cease Activities.** Upon receiving a notice of termination of this Grant, Grantee will immediately cease all activities under this Grant, unless District expressly directs otherwise in such notice. Upon termination, Grantee will deliver to District all documents, information, and reports related to the Grant.

SECTION 17: INSURANCE

Grantee shall maintain insurance set forth in the charter contract and any necessary insurance to cover activities related to the Project as reasonably determined by the District.

SECTION 18: NONAPPROPRIATION

District's obligation to pay any amounts and otherwise perform its duties under this Grant is conditioned upon District receiving funding, appropriations, limitations, allocations, or other expenditure authority sufficient to allow District, in the exercise of its reasonable administrative discretion, to meet its obligations under this Grant.

SECTION 19: AMENDMENTS

The terms of this Grant may not be altered, modified, supplemented or otherwise amended, except by written agreement of the Parties.

SECTION 20: NOTICE

Except as otherwise expressly provided in this Grant, any notices to be given relating to this Grant must be given in writing by facsimile, email, personal delivery, or postage prepaid mail, to a Party's Grant Manager at the physical address, fax number or email address set forth in this Grant, or to such other addresses as either Party may indicate pursuant to this Section 20. Any notice so addressed and mailed becomes effective five (5) days after mailing. Any notice given by personal delivery becomes effective when actually delivered. Any notice given by email becomes effective upon the sender's receipt of confirmation generated by the recipient's email system that the notice has been received by the recipient's email system. Any notice given by facsimile becomes effective upon electronic confirmation of successful transmission to the designated fax number.

SECTION 21: SEVERABILITY

The Parties agree that if any term or provision of this Grant is declared by a court of competent jurisdiction to be illegal or in conflict with any law, the validity of the remaining terms and provisions will not be affected, and the rights and obligations of the Parties will be construed and

enforced as if the Grant did not contain the particular term or provision held to be invalid.

SECTION 22: COUNTERPARTS

This Grant may be executed in several counterparts, all of which when taken together shall constitute one agreement, notwithstanding that all Parties are not signatories to the same counterpart. Each copy of the Grant so executed constitutes an original.

SECTION 23: COMPLIANCE WITH LAW

In connection with their activities under this Grant, the Parties shall comply with all applicable federal, state and local laws.

SECTION 24: INTENDED BENEFICIARIES

District and Grantee are the only parties to this Grant and are the only parties entitled to enforce its terms. Nothing in this Grant provides, is intended to provide, or may be construed to provide any direct or indirect benefit or right to third parties unless such third parties are individually identified by name herein and expressly described as intended beneficiaries of this Grant.

SECTION 25: TIME IS OF THE ESSENCE

Time is of the essence in Grantee's performance of the Project activities under this Grant.

SECTION 26: MERGER, WAIVER

This Grant and all exhibits and attachments, if any, constitute the entire agreement between the Parties on the subject matter hereof. There are no understandings, agreements, or representations, oral or written, not specified herein regarding this Grant. No waiver or consent under this Grant binds either Party unless in writing and signed by both Parties. Such waiver or consent, if made, is effective only in the specific instance and for the specific purpose given. EACH PARTY, BY SIGNATURE OF ITS AUTHORIZED REPRESENTATIVE, HEREBY ACKNOWLEDGES THAT IT HAS READ THIS GRANT, UNDERSTANDS IT, AND AGREES TO BE BOUND BY ITS TERMS AND CONDITIONS.

SECTION 27: RECORDS MAINTENANCE, MUNICIPAL AUDIT, AND ACCESS

Grantee shall maintain all financial records relating to this Grant in accordance with generally

accepted accounting principles. In addition, Grantee shall maintain any other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant in such a manner as to clearly document Grantee performance. All financial records, other records, books, documents, papers, plans, records of shipments and payments, and writings of Grantee, whether in paper, electronic or other form, that are pertinent to this Grant, are collectively referred to as "Records." Grantee acknowledges and agrees that District and the Oregon Secretary of State's Office and their duly authorized representatives will have access to all Records to perform examinations and audits and make excerpts and transcripts. All Funds received by Grantee as part of the Grant shall be accounted for separately and included in the Grantee's municipal audit according to ORS 338.095 and reported to District annually. Grantee shall retain and keep accessible all Records for a minimum of five (5) years, or such longer period as may be required by applicable law, following termination of this Grant, or until the conclusion of any audit, controversy or litigation arising out of or related to this Grant, whichever date is later.

SECTION 28: HEADINGS

The headings and captions to sections of this Grant have been inserted for identification and reference purposes only and may not be used to construe the meaning or to interpret this Grant.

SECTION 29: GRANT DOCUMENTS

This Grant consists of the following documents, which are listed in descending order of precedence: [INSERT relevant documents as needed]

SECTION 30: SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Grant as of the dates set forth below.

MULTNOMAH COUNTY SCHOOL DISTRICT NO. 1J

By: _____ _____

School District Representative Date

_____

Printed Name, Title

The Emerson Charter School

By: _____

Signature of Charter School Representative

_____

Date

_____

Printed Name, Title

THE EMERSON CHARTER SCHOOL

EXHIBIT A
THE PROJECT

SECTION I – CHARTER SCHOOL SIA PLAN

The Grantee will develop a two-year (2 year) plan to implement grant activities aligned to the purpose and allowed uses of funds. The two-year plan must include a budget, strategies, activities, and longitudinal performance growth targets. The Grantee will submit Plan and Budget to District in the format provided by ODE in the *Integrated Planning and Budget Template.*

SECTION II – DISTRICT REVIEW

The Project must include a budget and a description of activities for the Performance Period of the Grant. Budget will be based on SIA Allocation/Disbursement Reports published by the Department. Grantee will submit the Project to District by the due date communicated by the District, before the District's SIA application is scheduled to be approved by the District school board and shall be included with the District's SIA application to the Department.

District school board approval of the Grantee's application does not necessarily mean endorsement or agreement with the Grantee's Project.

SECTION III – BUDGET AND ACTIVITIES

The Grantee shall develop a budget for the Project aligned to the allowed uses in Section 9, subparagraph 3 of the Act. Grantee will identify at least one strategy and supporting activities with appropriate budget.

SECTION IV – UPDATES AND REVISIONS

If there are changes to the Grantee Project, the Grantee shall submit an updated or revised Project with budget to District at least thirty (30) days prior to the Department's next disbursement of SIA Funds to the District. The District may review the Project to ensure alignment to the allowed uses in Section 9, subparagraph 3 of the Act.

SECTION V – ACCOUNTABILITY

The Grantee shall report quarterly and annually as a required component of the District's SIA reporting.

SECTION VI – FINANCIAL REPORTING

In addition to quarterly reporting as a component part of the District's Quarterly Report, the Grantee shall report all expenses paid with Grant Funds to District within 180 days of disbursement as a component of the Quarterly Financial Reports to the District. The report shall include accounting and evidence of alignment to the allowed uses in Section 9, subparagraph 3 of the Act. At the District's request, the Grantee shall provide District expense report within fifteen (15) days at any time during the Performance Period.

Reporting and Monitoring Activities	**District or Charter School**	**Frequency or Specific Date**
Report on Grant Funds in detail as component part of Quarterly Financial Reports to the District	Charter School	Quarterly Each Year: January 31, April 30, July 31, October 31
Any additional reporting or monitoring as determined by District, the Act, or the Grantee	District or Charter School	As determined

Emerson School - Early Lit Allowable Uses 25-27

	Allowable Use	Year(s) of Programming: (select all that apply)	PD: Entity (select one per row)	PD: Participants (select all that apply)	PD: Frequency (select one)	PD: Focus (select all that apply)	Coaching: Provider (select one per row)
1	Professional Development	SY 25-26	PDX Reading Specialist	Teachers	One-time: One Day	Assessment - Benchmark/ Progress Monitoring/ or Summative Foundational Skills Reading Comprehension Reading Models Based in Research	
2	Professional Development	SY 26-27	University of Oregon	Teachers	One-time: Multiday Intensive	Assessment - Benchmark/ Progress Monitoring/ or Summative Family and Community Partnerships for Literacy Foundational Skills Reading Comprehension Reading Models Based in Research Student Belonging & Culturally Responsive Instruction Vocabulary Writing	
3							
4	Coaching	SY 25-26 SY 26-27					District (internally led)
5	High Dosage Tutoring	SY 25-26 SY 26-27					
6	Extended Learning	SY 25-26 SY 26-27					

Coach: Participants (select all that apply)	Coaching: % Teachers or Admin Receiving	Coaching: Frequency (select one)	Coaching: Duration (select one)	Coaching: Focus (select all that apply)	HDT: Entity (select one per row)	HDT: Staff (select all that apply)	HDT: Before/After/During School (select one)	HDT: Ratio (select one)
Administrators Teachers	76-100%	Monthly	Entire School Year	Assessment - Benchmark/ Progress Monitoring/ Summative Coaching for administrators on leading for literacy Developmentally Appropriate Instruction Foundational Skills Oral Language Development Reading Comprehension Reading Models Based in Research Student Belonging & Culturally Responsive Instruction Supplemental Instructional Materials Implementation Supporting Students with Disabilities Vocabulary Writing				
					District (internally led)	Licensed Teachers	During School (Cannot be	Group Size Will Vary Between 1

HDT: Duration (select one)	HDT: Frequency (select all that apply)	ExtL: Entity (select one per row)	ExtL: If "Other" entity please describe	ExtL: Staff (select all that apply)	ExtL: Before/After/Summer (select all that apply)	ExtL: If "Other" engagement time please describe	ExtL: Program Description	ExtL: If "Other" program please describe
>20 Weeks	4x Per Week							
		District (internally led)		Licensed Teachers	After School		Other (please describe)	Home to School Connection; reading packets reinforcing work done in small group - high dosage tutoring.

Emerson School - Early Literacy Inventory 25-27

	Type of Material	If Other, Please Describe	**Title of Literacy Asssessments, Tools, etc.**	Name of Vendor/Developer/Publisher	Is This Your Student Growth Assessment?	Print or Digital	PreK	K
1	Core Materials		Fundations	Wilson Language Basics	No	Print	☐	☑
2	Supplemental Materials		easyCBM	easyCBM	Yes	Both Print and Digital	☐	☑
3								
4								
5								
6								
7								
8								
9								
10								
11								
12								
13								
14								
15								
16								
17								

1st	2nd	3rd	4th	5th	CORE ONLY: Adoption SBE or Independent	CORE ONLY: If SBE Adopted, Select Material	CORE ONLY: If Indpndt Adpt, Mts SBE Criteria	Date of Adoption or Start of Use MONTH	Date of Adoption or Start of Use YEAR
☑	☑	☑	☐	☐	Independent Adoption		Yes our school board used the	September	2024
☑	☑	☑	☑	☑	Independent Adoption		Yes our school board used the	September	2024

Planned Changes or Updates

Emerson School - Outcomes and Strategies 25-27

	Identifier	Outcome or Strategy	2025-27 Application Response
1			
2	Strategy Early Lit 1	Provide high dosage tutoring to students in grades 1-3 not yet meeting meeting benchmark via Easy CBM assessment	Edited from 2023-25 for 2025-27
3	Strategy Early Lit 2	Progress monitoring 3x a year using EasyCBM, K-3	Edited from 2023-25 for 2025-27
4	Strategy Early Lit 3	Provide professional learning, coaching and team-planning for our teachers on early literacy instructional practices supporting teachers to apply those instructional practices to improve students reading and writing abilities.	Edited from 2023-25 for 2025-27
5	**Outcome A**	**Increase academic achievement in early literacy for focal student groups.**	**Edited from 2023-25 for 2025-27**
6	Strategy B1	Staff will create a culture of safety and respect for all students that supports the social, emotional well being that is vital to academic success.	Edited from 2023-25 for 2025-27
7	**Outcome B**	**At least 75% of our 3rd-5th grade students will report a sense of social, emotional and physical wellbeing at school according to end of year surveys.**	**New for 2025-27**